

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF ~~QUEENS~~ New York

Reset Form

ALEXANDRA GRZESIK

[YOUR NAME(S)]

Plaintiff(s),

Index No. _____/____

-against-

Date Index No.
purchased _____

The City of New York, NY PD

AND DANIEL FAUGHNAN

SUMMONS

[NAME OF PERSON(S) SUED]

Defendant(s)

To the Person(s) Named as Defendant(s) Above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint of the plaintiff(s) herein and to serve a copy of your answer on the plaintiff(s) at the address indicated below within 20 days after the service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the Summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer, a judgment will be entered against you by default for the relief demanded in the complaint.

Dated: June 15, 2020
[DATE OF SUMMONS]

DONALD ROSENKRANTZ ESQ
[YOUR NAME(S)]

520 E 81 STREET 60
NEW YORK NEW YORK 10023
212-7195336
[YOUR ADDRESS(ES) and
PHONE NUMBER(S)]

Defendant's Address CITY OF NY (1 CENTRE STREET NY NY 10001) NY PD (1 POLICE PLAZA NY NY 10006)
[ADDRESS OF PERSON(S) SUED] DANIEL FAUGHNAN (19th FLOOR 153 E 61ST NY NY 10022)

Venue: Plaintiff(s) designate(s) ~~Queens~~ New York County as the place of trial. The basis of this designation is [CHECK ONE]:

Plaintiff(s)' Residence in ~~Queens~~ New York County.Defendant(s)' Residence in ~~Queens~~ New York County.

Other -- Describe: _____

NOTE: THIS FORM OF SUMMONS MUST BE SERVED WITH A COMPLAINT

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

ALEXANDRA GRZESIK,

Plaintiff,

- *against* -

**THE CITY OF NEW YORK, N.Y.P.D. and
DANIEL FAUGHNAN**

Defendants.

**VERIFIED
COMPLAINT**

Index No: /2020

Plaintiff, Alexandra Grzesik, by her attorney, Donald Rosenkrantz, Esq., as and for her
Verified Complaint and upon information and belief, alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF FOR FALSE IMPRISONMENT AND/OR ARREST**

1. That at all times hereinafter mentioned, the Plaintiff was and is a resident of the City,
State and County of New York.

2. That at all the times hereinafter mentioned, the Defendant, The City of New York,
was and is a domestic municipal corporation duly organized and existing under and by virtue of the
laws of the State of New York.

3. That prior to the commencement of this action, the Plaintiff has complied with all
the applicable sections of the General Municipal Law which are conditions precedent to the
bringing of an action against the Defendant, The City of New York, including the timely service of
Notice of Claim which is annexed hereto, and made a part thereof.

4. That at all times hereinafter mentioned, the Defendant, The City of New York,
operated and managed and controlled the N.Y.P.D., as part of its municipal functions.

5. On November 20, 2019, and previously, one Daniel Faughnan (hereinafter
"Faughnan"), was employed by the N.Y.P.D., as a detective at the 19th Precinct of the N.Y.P.D.

6. On November 20, 2019, Faughnan arrested the Plaintiff on the complaint of one MaryAlice Sanchez (hereinafter "Sanchez"), whose allegations led to the filing of five(5) separate criminal charges (annexed hereto), and said arrest was intentional.

7. Said arrest involved the Plaintiff being handcuffed, confined in a jail cell, fingerprinted and photographed and required to appear in New York Criminal Court multiple times against her will, and Faughnan failed to advise the Plaintiff if he had a lawful warrant for her arrest.

8. Plaintiff's arrest and false imprisonment were illegal and improper because Faughnan relied solely on the palpably unreliable allegations of Sanchez, who was openly hostile to the Plaintiff and admitted to numerous angry interactions with the Plaintiff, previously.

9. Defendant Faughnan's investigation was incomplete, shoddy, superficial and sloppy, he found no third party witness or surveillance video, and he had no reasonable cause to believe that any misdemeanor charged had been committed by the Plaintiff, and the evidence did not provide reasonable cause to lead a reasonable and prudent N.Y.P.D. detective to believe that any misdemeanor had been committed by the Plaintiff.

10. That as a result of the above actions by the Defendants, the Plaintiff has been damaged in the sum of Five Hundred Thousand (\$500,000) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR NEGLIGENCE

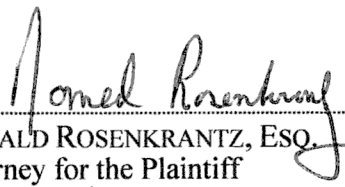
11. Plaintiff repeats, reiterates and realleges each and every allegation in the Complaint numbered "1" through "10", as if more fully set forth herein, at length.

12. The investigation that the Defendants' undertook was incomplete, superficial, shallow and carelessly performed, and the subsequent criminal charges made against the Plaintiff were unfounded by the facts addressed herein, and were unnecessary to provide the complainant who originated these charges, MaryAlice Sanchez, a remedy for her alleged injury.

13. As a result of the above action by the Defendants, the Plaintiff has been damaged in the sum of Five Hundred Thousand (\$500,000) Dollars.

WHEREFORE, the Plaintiff demands judgment on each of her Causes of Action in the sum of Five Hundred Thousand (\$500,000) Dollars, in addition to costs, disbursements and interest from November 20, 2019, plus such other and further relief which to this Court deems just and proper.

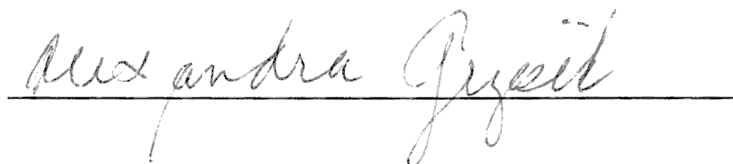
Dated: New York, New York
June 15, 2020


DONALD ROSENKRANTZ, ESQ.
Attorney for the Plaintiff
520 East 81st Street, Suite #6-B
New York, New York 10028
Telephone: (212) 717-5326

VERIFICATION

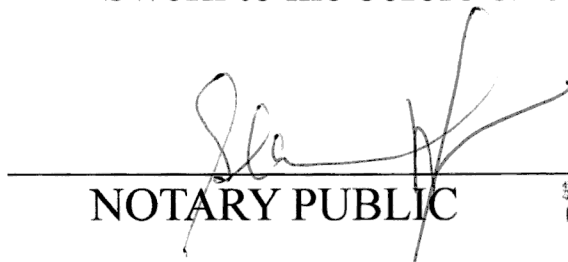
STATE OF NEW YORK, COUNTY OF NEW YORK

I, Alexandra Grzesik, being duly sworn, deposes and say: I am the Plaintiff in the within action: I have read the foregoing Verified Complaint and know the contents thereof: the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.



Alexandra Grzesik

Sworn to me before on June 16, 2020


NOTARY PUBLIC

SEBRINA N. JACOBS TULLOCH
Notary Public, State of New York
No. 01JA6095223
Qualified in Nassau County
Commission Expires July 07, 2018 23

OFFICE OF THE COMPTROLLER CITY OF NEW YORK

CLAIMANT INFORMATION

NOTICE OF CLAIM

CLAIMANT'S NAME: ALEXANDRA GRZESIAK TEL. #: (917) 663-5500STREET ADDRESS: 1540 York Ave 10NCITY: NY STATE: NY ZIP: 10048SOC. SEC. # or TAX I.D. #: 01442226

CLAIM INFORMATION

CITY AGENCY INVOLVED: New York Police Dept

NATURE OF CLAIM: (ATTACH ADDITIONAL SHEET(S) OF PAPER, IF NECESSARY)

On 11/20/19 Between approximately 12:45 AND 1:00 PM
at the 19th Precinct of the New York City Police
Department located at 153 E 67th Street NY NY CLAIMANT WAS
Arrested, handcuffed and placed in a car by Detective Daniel Fanchina,
and charged with Multiple Misdemeanors. When said Detective prior to
arresting CLAIMANT knew or should have known that they was not given the
evidence to support any criminal charges or justifying said action!

TOTAL AMOUNT CLAIMED: \$ 1,000,000

IF MORE THAN ONE ITEM IS INCLUDED IN THE TOTAL AMOUNT CLAIMED, SUPPLY BREAKDOWN OF AMOUNTS AND SPECIFY ITEMS: (ATTACH ADDITIONAL SHEET(S), IF NEEDED)

ITEM	AMOUNT
1. <u>Emotional Injuries</u>	\$ <u>1,000,000</u>
2. <u>Sleeplessness loss</u>	\$ _____
3. <u>Loss of Appetite, Aggravation</u>	\$ _____
4. <u>of Preexisting Depression</u>	\$ _____
5. _____	\$ _____

PLEASE ATTACH COPIES OF SUPPORTING DOCUMENTATION, PREVIOUS CORRESPONDENCE, INVOICES, ETC.

CLAIMANT'S SIGNATURE: Alexandra Grzesiak
 SS: STATE OF N.Y. ALEXANDRA GRZESIAK
 CITY OF N.Y. SUBSCRIBED AND SWORN TO BEFORE ME THIS 24TH DAY OF JAN, 2020

Myraas Henry
 NOTARY

TO: OFFICE OF THE COMPTROLLER
 DIVISION OF LAW - RM.1225 South
 1 CENTRE STREET
 NEW YORK, N.Y. 10007
 TELEPHONE # (212) 669-4736

S.S}

THIS DOCUMENT WAS SWORN BEFORE ME ON THIS

24TH DAY OF JAN, 2020

PERSONALLY APPEARING AND DECLARING Alexandra Grzesiak
 NOTARY PUBLIC IN THE STATE OF NEW YORK.

Index No: _____

Supreme COURT OF THE STATE OF NEW YORK
 COUNTY OF New York

ALEXANDRA GRZESIK PLAINTIFF
 AGAINST
 The City of NY, NYPD, AND DANIEL FAUGHNAN DEFENDANTS

DONALD ROSENKRANTZ, ESQ.
 520 East 81st Street, Room 6B
 New York, New York 10028
 (212) 717-5326

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____

Signature: _____

Print Signer's Name: _____

Please Take Notice**NOTICE OF ENTRY**

The annexed is a (certified) true copy of an
 above named court on

2020.

duly entered in the office of the clerk of the

Dated: _____, 2020
 New York, New York

Dated: _____, 2020
 New York, New York

NOTICE OF SETTLEMENT

The annexed proposed Order will be presented for settlement and signature to Hon.
 Surrogate of _____ County to be held at the court house on _____, 2020 at 9:30AM.

Dated: _____, 2020
 New York, New York

DONALD ROSENKRANTZ, ESQ.
 520 East 81st Street, Room 6B
 New York, New York 10028
 (212) 717-5326

To: